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Case Number: 23STCV24100 Hearing Date: September 1, 2026 Dept: 509

Sarah Rayne v. CMJ Media, LLC, et al.

MOTION TO QUASH SERVICE OF THE CROSS-COMPLAINT

MOVING PARTY: Cross-Defendants CT Schude, LLC and Collin Schude

RESPONDING PARTY(S): Defendant and Cross-Complainant Andrew Harris

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a dispute between the members of the musical group "Cobra Man." Plaintiff Sarah Rayne (Rayne) alleges that her bandmate, Andrew Harris (Harris), took the band's trademark, withdrew funds from the Band's bank account(s), and locked Rayne out of the Band's social media accounts. Additionally, Rayne alleges that Harris and the Band's management—Defendants Shelter Music Group, Dino Paredes, and Derek Brewer—have attempted to force Rayne out of the Band. Rayne asserts causes of action for (1) breach of contract, (2) breach of fiduciary duty, (3) conversion, (4) fraud, (5) declaratory relief, and (6) involuntary dissolution.

Harris filed a Third Supplemental Amended Cross-Complaint against Rayne, CT Schude, LLC and Collin Schude, alleging that Rayne fraudulently incorporated Cobra Man, LLC, and represented that she was CEO of the Company and 50% owner. Harris asserts causes of action against cross-defendants for: (1) fraud; (2) breach of fiduciary duty; (3) breach of contract; (4) trademark infringement; (5) defamation; (6) unfair competition; (7) accounting; (8) declaratory judgment; (9) Penal Code §496; (10) Civil Code §3344; (11) injunctive relief ; (12) punitive damages; (13) attorney fees & costs.

Cross-Defendants CT Schude, LLC and Collin Schude now move to quash the service of the summons and cross-complaint. Harris opposed.

TENTATIVE RULING:

Cross-Defendants CT Schude, LLC and Collin Schude's Motion to Quash are DENIED WITH PREJUDICE.

The Cross-Defendants are ordered to file a responsive pleading (other than a motion to quash) within thirty (30) days.

Cross-Complainant to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Legal Standard

“A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her” (Code Civ. Proc., § 418.10, subd. (a).) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) “A court lacks jurisdiction over a party if there has not been proper service of process.” (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

B. Analysis

CT Schude, LLC and Collin Schude (Schude) move to quash the service of the cross-complaint.

As an initial matter, “a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) As Schude is not a licensed attorney, he cannot bring this motion on behalf of CT Schude, LLC.

This Court is aware that there is a pro hac vice application pending to allow Nicole Schude, a license attorney in Illinois, to represent both CT Schude, LLC and Collin Schude. That application is currently set for hearing at the same time of the motion to quash (9/1/26). Whether or not that application is granted remains to be seen, as, in part, it appears to be untimely. First, it was set for hearing on a mere five (5) days notice. Moreover, at the time the motion to quash was filed by Mr. Schude on 7/22/26, he did not have the required capacity to file such a motion on behalf of the LLC, as he is not a licensed California attorney. Hence, that motion as to the LLC was void in the first instance. [FN 1]

Accordingly, CT Schude, LLC’s Motion to Quash is DENIED.

However, as to the motion to quash filed by Mr. Schude in his individual capacity, in which he is allowed to represent himself, on June 11, 2026, Collin Schude was allegedly served by substitute service on his home. (6/22/26 Proof of Substitute Service.)

Code of Civil Procedure, section 415.20 provides that “[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail.” (Code Civ. Proc., § 415.20(b).)

Collin Schude argues that the substitute service was ineffective because the individual that received the summons and complaint was not a member of Collins Schude's household. (Mot. at p. 8.) Specifically, he declares "On June 11, 2026, Joel Verges was a tenant residing in a room in the loft at 2638 Huron Street. I resided in a separate dwelling unit at 2636 Huron Street. Access to both residences is through the same driveway and electronic gate, but Joel did not reside in my dwelling unit, was not a co- occupant of it, and was not a member of my household." (Shude Decl. ¶3, emphasis added.)

The Proof of Service at lists the service occurring at 2636 Huron St., Los Angeles CA 90065 and states:

June 11, 2026. 4:48.p.m. Server arrived at 4:48.p.m. the gate was closed. Surveillance was conducted. at 6:12.p.m. a Black Transit Cargo Van California Plates 9ACM336 pulled up and the electronic gate started to open. Server walked up to the premises there was a Male 6' Feet 200Lbs Black Hair 35-40 Years Old. walking towards the front of the gate. He identified his self as Joel Verges. Server asked for Defendant COLLINS SCHUDE, an individual; and Joel Verges confirmed that subject was not in.

June 11, 2026. 6:14.p.m. Service completed by leaving copies with: Joel Verges. Occupant. Male 6' Feet 200Lbs Black Hair 35-40 Years Old.

(6/22/26 Proof of Substitute Service.)

The declaration of Joel Verges states, "I am a tenant at 2638 Huron Street and reside in a room in the loft there. My residence is separate from Collins Schude's dwelling unit at 2636 Huron Street. I do not live in Collins's dwelling unit and am not a member of his household. I have never been authorized to accept service of process for Collins Schude or CT Schude, LLC. On June 11, 2026, I was a tenant at the property managed by Collins." (Verges Decl. ¶¶2-3.)

However, the fact that Joel Verges is not a member of Collin Schude's household does not affect the sufficiency of service. "The evident purpose of Code of Civil Procedure section 415.20 is to permit service to be completed upon a good faith attempt at physical service on a responsible person...." (Ibid., emphasis added.) Service must be made upon a person whose "relationship with the person to be served makes it more likely than not that they will deliver process to the named party." (Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1393." The totality of evidence shows that Joel Verges was a responsible person that, more likely than not, would deliver process to Collin Schude because Joel Verges was Collin Schude's tenant sharing adjoining dwellings. Joel Verges was served on the entryway to Collin Schude's dwelling. This is sufficient to satisfy the requirements of Code of Civil Procedure, section 415.20.

This conclusion is in line with the policy that "[s]tatutes governing substitute service shall be 'liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant.'" Hearn v. Howard, (2009) 177 Cal.App.4th 1193, 1201 [internal citations omitted].)

Accordingly, Collin Schude's Motion to Quash is DENIED.

IT IS SO ORDERED.

Dated: September 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It must be noted that a fee waiver was granted by the Clerk only as to Mr. Schude. A limited liability corporation is not qualified to obtain a fee waiver. Hence, a first appearance fee is still owed to this Court by CT Schude, LLC. Indeed, this Court may choose to revisit the issue as to whether Mr. Schude, in his individual capacity, is actually qualified to obtain a fee waiver, given his declared income levels. That will be discussed in a more appropriate manner at the hearing.